

agreement until shortly before it moved to compel arbitration 13 months later. (*Id.* at 571, 586.) The Court in *Quach* was skeptical of the defendant's not having located the arbitration agreement in part for the same reasons the Court in this case is skeptical that UPS was not aware of the Arbitration Agreement; the human resources director in that case, like Ditmars and Harris here, provided evidence that during the time frame in which the plaintiff in *Quach* was employed, all employees were required to sign a binding arbitration agreement for employment-related disputes. (*Id.* at 586.) (See also *Campbell v. Sunshine Behavioral Health, LLC* (2024) 105 Cal.App.5th 419, 429-430.) As in *Campbell*, there is no evidence that the Arbitration Agreement could not have been accessed by a search of UPS's electronic files turned over to the Jones Day firm; the fact that Seyfarth was able to locate the document in a document review seven weeks after it became counsel of records indicates the document was accessible as part of the electronic records UPS gathered and turned over to counsel.

D. Conclusion: UPS Has Waived the Right to Compel Arbitration of Turner's Claims

The Court finds that there is clear and convincing evidence of waiver on this record. The Court therefore **denies** the motion to compel arbitration of Turner's claims against UPS and the individual defendants.

12. 9:00 AM CASE NUMBER: C24-01961

CASE NAME: WILLIAM DEDMAN VS. BRIAN HOWARD

***HEARING ON MOTION IN RE: INTENTION TO MOVE TO SET ASIDE AND VACATE JUDGMENT FILED BY NATALIA HOWARD**

FILED BY:

TENTATIVE RULING:

Summary

Defendant Natalia Howard's Motion to Set Aside Judgment and Motion for New Trial is **denied** as set forth herein.

Background

This is a landlord-tenant case where Plaintiff William Dedman served a three-day notice to pay rent or quit to Defendants pursuant to Code of Civil Procedure §§ (CCP) 1161(2) and 1161 (3). In lieu of pursuing an unlawful detainer action, Plaintiff William Dedman ("Plaintiff") entered into a stipulated agreement that allowed Defendants Brian Howard and Natalya Howard ("Defendant") to vacate the subject property on or before July 15, 2022 with certain conditions, which Plaintiff, at trial, alleged were violated. A default was entered against Defendant Brian Howard, who is Natalia Howard's former spouse. Defendant Natalya Howard chose to represent herself in all proceedings, including the jury trial.

The case was set for a court trial on January 23, 2026. On that date, Defendant demanded a trial by jury, even though she previously failed to post jury fees. The Court granted relief from her waiver of her right to a jury trial over Plaintiffs objection. A jury trial was set for January 26, 2026. Defendant filed a Motion for Leave to File a Cross-Complaint on December 17, 2025 which was set for hearing on May 20, 2026. However, Defendant did not seek ex parte relief for an order advancing that hearing or to continue the trial date until the first day of trial. Instead, Defendant requested a continuance of the

trial on the morning of the scheduled jury trial January 26, 2026 as the jury venire was assembling. Plaintiff opposed this request because Plaintiff resides in Romania and traveled to Contra Costa County for a trial set for January 23, 2026. The Court found good cause to deny the continuance and confirmed the trial date and proceeded with the jury trial that was demanded by Defendant over her objection.

Both Parties selected a jury, presented opening statements, presented and cross-examined witnesses, presented evidence, and made closing arguments. Plaintiff was assisted by a Russian language interpreter throughout her jury trial. Plaintiff requested reporting through a fee waiver. The trial was recorded by certified court reporters.

After a full jury trial on the merits of this case, on February 2, 2026, the jury deliberated and returned a verdict against Defendant Natalya Howard and for Plaintiff William Dedman in the amount of \$28,762.50. The jury found that Plaintiff met his burden of proving, by a preponderance of evidence, that the subject premises were damaged by Defendant's actions. The jury further found that Defendant had improperly taken appliances from the subject premises. Judgment on the verdict was entered against Nataliya Howard on February 20, 2026. The judgment against Brian Howard was entered by default. A Notice of Entry of Judgment was served by mail on Defendant Nataliya Howard on February 26, 2026. Defendant filed a Notice of Intent to file this instant motion for a new trial and also moved to set-aside and vacate the judgment.

Defendant now seeks a new trial on the following grounds: (1) Irregularity in the proceedings claiming that the Court denied Defendant from arguing Civ. Code § 1950.5 relating to deposits during her case; (2) Error in the law claiming that the Court preventing Defendant from arguing Civ. Code § 1950.5 relating to security deposits and move-out inspections; (3) Verdict or Decision is against the law; (4) Irregularity of the proceedings or abuse of discretion in denying Defendant Motion for Leave to File to file a cross-complaint; (5) Accident or surprise; (6) Misconduct in the proceedings by Plaintiff regarding an accounting for rent relief program; (7) Error in the law in the jury's handling of the special verdict form. Defendant's motion asserts these grounds in a superficial manner, but does not support her arguments and analyses with evidence from the trial transcript, or a reference to the exhibits admitted into evidence. In other words, Defendant's motion is not supported by an analyses of the facts, any actual trial testimony, or proof of evidentiary errors which form the basis of her claims.

Plaintiff opposition asserts the following arguments: (1) The court properly excluded Defendant's non-disclosed witness, Kris Narayan, who was not offered for rebuttal. Narayan's proffered testimony relates to confidential settlement discussions pertaining to the settlement agreement entered by the parties prior to the trial; (2) The court properly ruled that evidence was authenticated and properly admitted against defendant; (3) Plaintiff presented uncontroverted evidence that Defendant improperly took appliances belonging to Plaintiff when she vacated the subject premises; (4) The Court properly allowed Defendant to cross-examine Plaintiff at the time trial; (5) Defendant's reliance on the security deposit rules of Cal. Code of Civ. Proc § 1950.5 is misplaced, as these proceedings were based on a termination of tenancy due to Defendant's failure to pay rent; (6) The Court properly excluded reference to a cross-complaint that was not filed by Defendant.

Analyses

Defendant is Self-Represented and is subject to the Rules that Apply to All Litigants

The Court is aware that Defendant is proceeding without an attorney in her lawsuit. The Court has admonished Defendant several times that a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants. Defendant appeared to be knowledgeable about the law in her briefs and pre-trial proceedings. Although she insisted on exercising her right to a jury trial and in representing herself, this Court notes that Defendant, like most self-represented litigants, did not have requisite litigation experience to defend herself at the jury trial. She did not effectively address the evidence admitted against her, nor did she cross-examine witnesses effectively.

Grounds for New Trial

An aggrieved party may make a motion for a new trial after a trial and decision by a jury. Cal. Code of Civ. Proc. § 656, 657 and 661. A court may grant a new trial only on statutory grounds that materially affect the substantial rights of the moving party.

A motion for a new trial is a new and independent proceeding, in which the trial court can reweigh the evidence and reevaluate the credibility of the witnesses. Akin to sitting as the 13th juror, a trial court is authorized to question the credibility of witnesses and draw inferences from the evidence contrary to the inferences drawn by the jury. The court may grant a new trial based only on statutory grounds "materially affecting the substantial rights of" the aggrieved party. *Ajaxo, Inc. v. E*Trade Fin.*

Corp. (2020) 48 Cal.App.5th 129, 187; *Oakland Raiders v. National Football League* (2007) 41 Cal.4th 624, 633. Cal. Code Civ. Proc. § 657 states, "The right to a new trial is purely statutory, and a motion for a new trial can be granted only on one of the grounds enumerated in the statute." *Fomco, Inc. v. Joe Maggio, Inc.* (1961) 55 Cal. 2d 162, 166. "The procedural steps for making and determining such a motion are mandatory and must be strictly followed." *Linhart v. Nelson* (1976) 18 Cal. 3d 641, 644. A motion for a new trial calls for reexamination of an issue of fact or law in the same court after a trial and decision by a jury, court, or referee. See Cal. Code Civ. Proc. §§ 656, 657.

"A new trial motion allows a judge to disbelieve witnesses, reweigh evidence and draw reasonable inferences contrary to that of the jury, and still, on appeal, retain a presumption of correctness that will be disturbed only upon a showing of manifest and unmistakable abuse." *Fountain Valley Chateau Blanc Homeowner's Ass'n v. Department of Veterans Affairs* (1998) 67 Cal. App. 4th 743, 751-752. In weighing and evaluating the evidence, the court is a trier-of-fact and is not bound by the jury's factual resolutions. The court may grant a new trial even though there is sufficient evidence to sustain the jury's verdict on appeal provided that the court determines that the weight of the evidence is against the verdict. See *Candido v. Huitt* (1984) 151 Cal. App. 3d 918, 923. "A new trial motion allows a judge ... draw reasonable inferences contrary to that of the jury, and still, on appeal, retain a presumption of correctness that will be disturbed only upon a showing of manifest and unmistakable abuse." *Fountain Valley Chateau Blanc Homeowner's Ass'n v. Department of Veterans Affairs* (1998) 67 Cal. App. 4th 743, 751-752

The grounds relevant to this motion are set forth in Cal. Code of Civ. Proc. § 657, which provides, that a new trial may be granted if the record demonstrates (1) An irregularity in the proceedings (2) Misconduct of the jury; (3) Accident or surprise; (4) Excessive or inadequate damages; (5) Erroneous instructions to the jury; (6) Newly discovered evidence; (7) Insufficiency of the evidence to justify the verdict; or (8) Verdict is against the law.

In evaluating the moving papers submitted by Defendant, the opposition brief submitted by Plaintiff, and carefully reviewing the minutes of proceedings of the trial, the rulings on Plaintiff's motions in limine, the register of actions, the exhibits admitted into evidence, and the verdicts reached by the jury, this Court struggles to find any independent evidence from which it can draw inferences of irregularity, jury misconduct, accident, insufficiency of evidence, or that there was an illegal verdict.

Defendant did not order a transcript of the trial proceedings and did not cite, in any detail, to instances in the trial testimony where there is evidence that supports any of the grounds set forth in her motion. Defendant's Memorandum of Points and Authorities presents a superficial summary of grounds which she claims supports a motion for new trial. However, the declaration of Defendant and the grounds upon which she seeks new trial do contain any detailed analyses, citations to evidence, or a reference to trial exhibits improperly admitted from which this court could ascertain any error in the proceedings. While Defendant cites to evidence admitted by the Court, she fails to disclose that any evidentiary objections were considered by the Court and appropriate rulings were rendered prior to the admission of evidence. In short, Defendant's summary motion fails to sufficiently address the grounds upon which this court may grant a new trial.

After exercising its independent judgment in weighing the evidence presented at trial, and sitting as

the hypothetical “13th juror,” this Court concludes that the jury’s findings are supported by credible and competent evidence. In weighing any evidence that was presented to the jury independently, and reviewing the trial record, the Court finds that there was sufficient evidence to support Plaintiff’s verdict against the Defendant in this case. Accordingly, the Court finds that reasonable inferences drawn from the evidence establish that there was no insufficiency of the evidence which leads this Court to conclude that the jury should have come to a different decision.

After reviewing the evidence in light of the foregoing statutory and decisional authority, the Court finds good cause to deny Defendant’s Motion for New Trial

Ruling

Defendant Natalia Howard’s Motion for New Trial is **denied**. Plaintiff is ordered to prepare and e-file a proposed order attaching a copy of the tentative ruling no later than five (5) days from the date of the hearing.

13. 9:00 AM CASE NUMBER: C24-02919
CASE NAME: NICOLE LITTLE VS. JOHN MUIR HEALTH
HEARING ON SUMMARY MOTION CONTD FROM 3/11/26 PER TR
FILED BY:
TENTATIVE RULING:

Before the Court is a motion for summary judgment filed by John Muir Health (“defendant” or John Muir”). The motion is **granted**, as discussed below. John Muir shall circulate and submit, separate from any order on this motion, a proposed form of judgment.

I. Background

On December 25, 2023, plaintiff was injured when she tripped. Plaintiff’s shift at John Muir had ended and she was walking to her car. Plaintiff was employed as a travel nurse at John Muir’s facility through a contract between John Muir and nurse staffing agency, Cross County Healthcare (“Cross Country”).

Plaintiff’s complaint alleges two causes of action against John Muir, negligence and premises liability, based on an injury she suffered when she tripped while walking to her car after her shift ended. Plaintiff was employed as a travel nurse at John Muir’s facility through a contract between John Muir and nurse staffing agency, Cross County Healthcare (“Cross Country”). (SSUMF, Fact. Nos. 1-2, and plaintiff’s response.)

The contract between John Muir and Cross Country, pursuant to which plaintiff was working, provided that John Muir would retain “administrative and professional responsibility” for services rendered to patients, and further, that John Muir would be responsible for management and control functions related to the provision of service to patients. (SSUMF, Fact. No. 3, and plaintiff’s response.) Plaintiff argues this language is not determinative because John Muir “did not control plaintiff’s functions or duties,” citing facts that suggest plaintiff had a significant amount of experience and autonomy in delivering care. (See Additional Material Fact Nos. 1-7, 16-18.) Plaintiff points out that the contract between John Muir and Cross Country explicitly excluded any employment relationship between John Muir and the professionals working on behalf of Cross Country. (Additional Material